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CASE #	CASE NAME	HEARING NAME
CVPS2505991	ANTHONY VS RPK DEVELOPMENT CORPORATION	PLAINTIFF MELVIN ANTHONY JR.'S MOTION TO QUASH OR, IN THE ALTERNATIVE, MODIFY DEPOSITION SUBPOENA

Tentative Ruling: Personal service of a deposition subpoena obligates any California resident to appear, testify and produce the requested documents, and to appear in any proceedings to enforce the discovery. (Code Civ. Proc., § 2020.220, subd. (c).)

Code of Civil Procedure section 1987.1, subdivision (a), states:

If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personally identifying information is sought may bring the motion. (Code Civ. Proc., § 1987.1, subd. (b).)

If a party seeks to subpoena personal records (e.g., medical and insurance records) and employment records, then the party must serve on the consumer/employee a notice to consumer along with a copy of the subpoena. (Code Civ. Proc., §§ 1985.3, subds. (b) & (e); 1985.6, subds. (b) & (e).) The party-consumer/employee whose records are sought may move to quash or modify the subpoena under Code of Civil Procedure section 1987.1. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).) Five days before production, the deposition officer and witness are to be given notice of the motion. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).)

Code of Civil Procedure section 1987.1 requires that a motion to quash a subpoena be “reasonably made,” but does not require that the parties first resolve the issue informally. (See Code of Civ. Proc., §1987.1.)

Plaintiff argues the Subpoena is not tailored to the claimed injury, is an unreasonable violation of privacy, and the date limit does not cure its absence of a subject-matter limit. Plaintiff asserts when a patient tenders a mental or emotional condition, Evidence Code section 1016 creates an exception only for a communication relevant to that condition. Plaintiff maintains the Subpoena must be limited to the emotional condition Plaintiff placed in controversy.

RPK argues the Subpoena seeks information implicated by Plaintiff's emotional distress and disability claims.

Both parties cite Evidence Code section 1016, *In re Lifschutz* (1970) 2 Cal.3d 415, and *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859-864 to support their respective positions.

There are three issues: privacy, psychotherapy privilege, and attorney client privilege.

Here, by presenting this lawsuit and asserting claims for IIED and violation of the Americans with Disabilities Act, Plaintiff has placed his physical and mental health at issue. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840 [a personal injury plaintiff partially waives the right of privacy to medical records by filing a lawsuit; *Vesco v. Superior Court* (2013) 221 Cal.App.4th 275, 279 ["It is unfair to allow a party to raise an issue involving her medical condition while depriving an opposing party of the opportunity to challenge her claim"].) However, the compelled disclosure must be precise and narrowly tailored. (*Britt, supra*, 20 Cal.3d at 856.)

In the present case, the Subpoena at issue seeks:

MEDICAL RECORDS: Complete medical and/or therapeutic treatment records of MELVIN ANTHONY, JR., from 03/01/2026 to present including but not limited to any records/documents that may be stored digitally and/or electronically: TeleHealth Records and any recordings, documents, correspondence, correspondence from the patient or patient's attorney, patient intake forms, registration forms, patient information sheets, demographic records, appointment logs, scheduling records, attendance records, cancellation records, copies of health insurance cards and photo ID's, medical reports, doctor's entries, nurse's notes, medication administration records, office notes, progress reports, lab reports, pathology reports, monitor strips, physical therapy records, therapy records, occupational therapy records, case history, emergency records, outpatient records, diagnosis and prognosis documentation, admit and discharge records, notation(s) on any file folder.

Complete medical records of MELVIN ANTHONY, JR.'S mental, psychological, and emotional condition from beginning of treatment at your office to present including but not limited to any records/documents that may be stored digitally and/or electronically: TeleHealth Records and any recordings, documents, correspondence, correspondence from the patient or patient's attorney, patient intake forms, registration forms, patient information sheets, demographic records, appointment logs, scheduling records, attendance records, cancellation records, medical reports, doctor's entries, nurse's notes, medication administration records, office notes, progress reports, lab reports, pathology reports, monitor strips, therapy records, occupational therapy records, case history, emergency records, outpatient records, diagnosis and prognosis

documentation, admit and discharge records, notation(s) on any file folder.

All communications with the (sic) MELVIN ANTHONY, JR., or any representative on behalf of MELVIN ANTHONY, JR., including secure messages and every such record, including those existing in electronic, written, recorded, or magnetic form in the possession, custody or control of the said witness, and every such record to which the witness may have access.

(Plaintiff Decl., Exh. A, Attachment 3.)

As phrased, the descriptions in the Subpoena seeking “[c]omplete medical and/or treatment records” and “[a]ll communications”, including those recordings, identification materials, administrative records, billing communications, and “correspondence from [Plaintiff] or [his] attorney,” are overly broad and seeks broad categories of documents. The categories of documents to be produced must be “reasonably” particularized from the standpoint of the party on whom the demand is made. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) While some items listed may include some documents which are relevant and reasonably calculated to lead to admissible evidence, an otherwise permissible description of categories in a deposition subpoena may become burdensome if combined with detailed “definitions” and “instructions” that expand and complicate the demand. (*Id.*) Here, the Subpoena is not tailored to the claimed injury and also seeks privileged information.

Privacy:

The party asserting a privacy interest has the burden of establishing its extent and the seriousness of the prospective invasion. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.) A party asserting a right to privacy must establish: (1) “a legally protected privacy interest”; (2) “a reasonable expectation of privacy in the circumstances”; and (3) “conduct by defendant constitutes a serious invasion of privacy.” (*Hill v. Nat’l Collegiate Athletic Ass’n* (1994) 7 Cal.4th 1, 39-40; see also *Williams, supra*, 3 Cal.5th at 552.) Plaintiff maintains he is entitled to confidentiality for unrelated medical and psychotherapeutic treatment. (*Britt, supra*, 20 Cal.3d at 859-864.) This is a valid argument to justify Plaintiff’s objection to the Subpoena.

The burden shifts to RPK, the party seeking discovery, to show that the information (a) is directly relevant to the cause of action or defense, and essential to a fair resolution of the lawsuit; and (b) cannot be obtained through any less intrusive means. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 843-844.) Assuming the proponent meets its burden, the court then must “carefully balance” the competing interests: the right of privacy versus the interest in obtaining just results in the litigation. (*Lewis v. Superior Court* (2017) 3 Cal.5th 561, 573.) However, even when the balancing weighs in favor of disclosure, the courts must narrowly tailor the order to preserve the right of privacy to the greatest extent. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.)

Here, RPK acknowledges Plaintiff’s right to privacy for unrelated medical and psychotherapeutic treatment. (Opp., pg. 6:14-16.) RPK explains, however, that as long

as Plaintiff maintains his allegation of severe emotional distress, RPK is entitled to discovery of all records directly related to the conditions Plaintiff placed at issue, to wit: humiliation, anxiety, and mental anguish. In this regard, RPK does not dispute the privacy aspect as to unrelated materials.

Attorney-client privilege:

RPK argues that Plaintiff, as an unrepresented party, may not assert attorney-client privilege.

Generally, “[t]he attorney-client privilege, set forth at Evidence Code section 954, confers a privilege on the client ‘to refuse to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer.’” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 732.) “The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship. [Citations.] Once that party establishes facts necessary to support a prima facie claim of privilege, the communication is presumed to have been made in confidence and the opponent of the claim of privilege has the burden of proof to establish the communication was not confidential or that the privilege does not for other reasons apply.” (*Id.* at 733; see *Venture Law Group v. Superior Court* (2004) 118 Cal.App.4th 96, 102.)

While it is true that Plaintiff is unrepresented, the principles of the attorney-client privilege are no less valid.

RPK also argues the attorney work-product doctrine does not apply because Plaintiff is pro per. However, attorney work product pertains to an attorney’s thoughts, impressions, or legal theories on a matter. (*County of Los Angeles v. Superior Court* (2000) 82 Cal.App.4th 819, 833.) The work product privilege “may also be asserted by a pro se litigant because the privilege ‘is intended for the protection of litigants, not just attorneys.’ [Citation.]” (*Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal.App.4th 969, 977.)

Psychotherapist-patient privilege:

Evidence Code section 1014 creates a privilege for confidential communications between a patient and a psychotherapist. The psychotherapist has a duty to claim the privilege. (Evid. Code, § 1015.) There are several exceptions. (*Id.* at §§ 1016-1027.) “[T]he patient-litigation exception allows only a limited inquiry into the confidences of the psychotherapist-patient relationship, compelling disclosure of only those matters directly relevant to the nature of the specific ‘emotional or mental’ condition which the patient has voluntarily disclosed and tendered in his pleadings or in answer to discovery inquiries.” (*In re Lifschutz, supra*, 2 Cal.3d at 431.) The *Lifschutz* court rejected the argument that when a plaintiff institutes a claim for physical or mental injury, the plaintiff automatically waived his statutory privileges as to all protected communications. (*Id.* at 435.) The *Lifschutz* court held such argument is an intolerable and overbroad intrusion into the patient’s privacy, creating opportunities for harassment and blackmail. (*Id.*) Under Evidence Code section 1016, disclosure can be compelled only with respect to those mental conditions the patient-litigant has disclosed by bringing an action in which they are

in issue; communications not directly relevant to those specific conditions do not fall within section 1016's exception and therefore remains privileged. (*Britt, supra*, 20 Cal.3d at 863-864.)

As noted, the Subpoenas are overly broad and encroaches upon the psychotherapist-patient privilege. Again, RPK does not oppose narrowing the scope of the Subpoena as follows:

"Any and all psychotherapy records, medical records, pharmaceutical records, disability records, billing records, and communications relating to Melvin Anthony, Jr.'s claimed emotional distress, including humiliation, anxiety, and mental anguish, from March 1, 2026 to the date of production."

(Opp., pg. 6:22-25.)

In reply, Plaintiff argues this language still uses broad categorical labels and the phrase "any and all" without defining the required nexus to the incidents and conditions tendered. RPK's proposed language still uses broad categorical labels and seeks categories that can be obtained through less intrusive means. RPK can obtain information regarding Plaintiff's disability through less intrusive means such as written discovery or taking Plaintiff's deposition. (*Vinson, supra*, 43 Cal.3d at 843-844.)

The Court shall adopt Plaintiff's proposed language for the subpoena modification in order to best preserve Plaintiff's right of privacy and privileges to the greatest extent. (*Britt, supra*, 20 Cal.3d at 859; *In re Lifschutz, supra*, 2 Cal.3d 415; *Costco Wholesale Corp., supra*, 47 Cal.4th 725.)

Plaintiff's Motion to Quash or in the Alternative, Modify Deposition Subpoena for Production of Business Records GRANTED in PART.

Defendant is ordered to submit NEW subpoena with the modified language below:

"Production limited to nonprivileged records dated March 1, 2026 forward that directly concern the emotional conditions Plaintiff attributes to the April 18, 2025 and May 22, 2025 towing incidents and related conduct, including any directly relevant assessment of the causes of those same conditions. Any unrelated mental or emotional conditions, unrelated medical or disability history, unrelated pharmaceutical treatment, third-party information, identification and insurance documents, or unrelated administrative material shall be excluded or redacted."

Defendant to comply with notice requirements pursuant to CCP 1985.3(b)(3).

Defendant's request to apply this order to deposition and trial testimony of Desert Insight providers is DENIED.